areas like the Nation River, two sources of Service authority over navigable rivers remain undisturbed by today's decision. First, as a default, the Service may well have authority to regulate *out*-of-park, nonpublic areas in the midst of parklands when doing so is necessary or proper to protect *in*-park, public areas—for instance, to ban pollution of the Nation River if necessary to preserve habitat on the riverbanks or to ban hovercraft use on that river if needed to protect adjacent public park areas. Nothing in ANILCA removes that power. Second, Congress most likely meant for the Service to retain power to regulate as parklands a particular subset of navigable rivers designated as "Wild and Scenic Rivers," although that particular authority does not, by its terms, apply to the Nation River.

Because the Court does not address these agency authorities, see *ante*, at 48, n. 5, 55–56, n. 10, I join its opinion. I also wish to emphasize, however, that the Court's opinion introduces limitations on—and thus could engender uncertainty regarding—the Service's authority over navigable rivers that run through Alaska's parks. If this is not what Congress intended, Congress should amend ANILCA to clarify the scope of the Service's authority.

I

Since the National Park System's creation in 1872, it has grown to include over 400 historic and recreation areas encompassing over 84 million acres. 54 U. S. C. § 100101(b)(1)(A); 83 Fed. Reg. 2065 (2018). These areas provide habitat for 247 threatened or endangered species and received more than 325 million visitors in 2016 alone. *Id.*, at 2065–2066.

The task of protecting this vast park system principally falls to the Park Service. In the National Park Service Organic Act (Organic Act), 39 Stat. 535, Congress entrusted the Service with regulating to leave the parks "unimpaired for the enjoyment of future generations." 54 U. S. C. § 100101(a). Congress empowered the agency to promulgate regulations "necessary or proper" for managing the Park System, including regulations "concerning boating and other activities on or relating to water located within [Park] System units." §§ 100751(a), (b). The Service has carried out this charge by enacting a wide range of regulations, including the ban on hovercraft use at issue. See 36 CFR § 2.17(e) (2018).

Wielding its Organic Act authority, the Service applies many park rules on federally owned lands and waters it administers, as well as navigable waters "within the boundaries of the National Park System." §§ 1.2(a)(1), (3). The title to lands beneath navigable waters, even within national parks, typically belongs to the States.[2] Because park boundaries can encompass both federally and nonfederally owned lands and waters, this means that some nonfederally owned waters are subject to Service regulations—at least outside of Alaska. See *ante*, at 37–38.

Against this backdrop, Congress enacted ANILCA. As the Court explains, ANILCA added millions of acres of federal land to the National Park System in Alaska and simultaneously swept around 18 million acres of nonfederally owned lands within the geographic boundary lines of the new Alaska parks. *Ante*, at 36–38; see also *Sturgeon* v. *Frost*, 577 U. S. 424, 431 (2016). In ANILCA, Congress directed the Service to manage Alaska's new and expanded parks "as new areas of the National Park System" under its Organic Act authority. 94 Stat. 2383, 16 U. S. C. § 410hh–2.

ANILCA reflects Congress' expectation that the Service will manage Alaska's parks with a particular focus on rivers and river systems. For instance, the agency must "maintain

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[2] Under the Submerged Lands Act of 1953, each State has "title to and ownership of the lands beneath [its] navigable waters." 43 U. S. C. § 1311(a); see *ante*, at 34–35, 42.

unimpaired the water habitat" for salmon in Katmai National Monument, preserve "the natural environmental integrity and scenic beauty of . . . rivers" in Gates of the Arctic National Park, and "maintain the environmental integrity of the entire Charley River basin, including streams, lakes and other natural features." §§ 410hh(4)(a), (10); § 410hh–1(2); see also §§ 410hh(1), (6), (7)(a), (8)(a); § 410hh–1(1). Some provisions of ANILCA direct the Service to regulate boating in Alaska's parklands. See, *e. g.*, § 3170(a). Others command the Service to regulate fishing. See, *e. g.*, § 3201. Together, these provisions make clear that Congress must have intended for the Park Service to have at least some authority over navigable waters within Alaska's parks.

And yet, ANILCA includes one provision that can be read to throw a wrench into that authority: § 103(c). This provision says that "[o]nly those lands within the boundaries of any conservation system unit which are public lands (as such term is defined in this Act) shall be deemed to be included as a portion of such unit." 16 U. S. C. § 3103(c). Section 103(c) then says that no state, native, or private lands "shall be subject to the regulations applicable solely to public lands within such units," although the Secretary may acquire those lands and administer them as part of the unit. *Ibid.* ANILCA, in turn, defines "public lands" as nearly all "lands, waters, and interests therein" in which the United States has title. §§ 3102(1)–(3). Crucially, Alaska has title to the lands under its navigable waters. See n. 2, *supra*. If the Service's ordinary authority over navigable waters within park boundaries is diminished in Alaska relative to everywhere else in the United States, all agree that ANILCA § 103(c) is the culprit.

II

Thus we arrive at the crux of this case: How, if at all, does ANILCA § 103(c) circumscribe the Service's ordinary authority over navigable rivers within the geographic boundaries of national parks?

A

I agree with the Court that the Service may not treat every navigable river in Alaska as legally part of Alaska's parks merely because those (nonpublic) rivers flow within park boundaries. The majority ably explains why ANILCA's text leads to this outcome. See *ante*, at 46–50. According to ANILCA § 103(c), navigable waters (at least apart from Wild and Scenic Rivers) must be treated as waters outside of park units for legal purposes. Thus they may not be "subject to the regulations applicable solely to public lands within such units." 16 U. S. C. § 3103(c).[3]

This principle is all that is required to resolve Sturgeon's case. The hovercraft rule applies only inside park boundaries. 36 CFR § 1.2(a) ("[R]egulations contained in this chapter apply to all persons entering, using, visiting, or otherwise within . . . [w]aters subject to the jurisdiction of the United States located within the boundaries of the National Park System"). The Nation River is, for legal purposes, outside of park boundaries. The hovercraft rule therefore does not apply on the Nation River.

B

Critically, although the Court decides today that the Service may not regulate the Nation River "as part of the park,"

[3] Notably, the Park Service did not argue—nor does the Court's opinion address—whether navigable waters may qualify as "public lands" because the United States has title to some interest other than an interest in reserved water rights. See §§ 3102(1)–(3). In particular, the United States did not press the argument that the Federal Government functionally holds title to the requisite interest because of the navigational servitude. See, *e. g., Kaiser Aetna* v. *United States*, 444 U. S. 164, 177 (1979) ("The navigational servitude . . . gives rise to an authority in the Government to assure that [navigable] streams retain their capacity to serve as continuous highways for the purpose of navigation in interstate commerce"); *United States* v. *Rands*, 389 U. S. 121, 123 (1967) ("This power to regulate navigation confers upon the United States a 'dominant servitude' "); 43 U. S. C. § 1314 (providing that the United States retains the navigational servitude in navigable waters).

ante, at 46, the Court does not hold that ANILCA § 103(c) strips the Service of all authority to protect navigable waters in Alaska. For good reason. It would be absurd to think that Congress intended for the Service to preserve Alaska's rivers, but left it without any tools to do so.

Imagine if all Service regulations could apply in Alaska's parklands only up to the banks of navigable rivers, and the Service lacked any authority whatsoever over the rivers themselves. If Jane Smith were to stand on the public bank of the Nation River, bag of trash in hand, Service rules could prohibit her from discarding the trash on the riverbank. See 36 CFR § 2.14(a)(1). The rules also could bar her from intentionally disturbing wildlife breeding activities, § 2.2(a)(2), making unreasonably loud noises, § 2.12(a)(1)(ii), and introducing wildlife into the park ecosystem, § 2.1(a)(2). But reading ANILCA § 103(c) to bar any Park Service regulation of navigable waters would permit Jane to evade those rules entirely if she were to wade into the river or paddle along the bank in a canoe. She could toss her trash bag in the water and amp up her speakers with impunity. Under this reading, the Park Service would be powerless to stop her. Jane's actions would likely harm flora and fauna on the banks of the river, which are public areas inside park boundaries. Jane's trash also could drift from a navigable (and thus out-of-park, nonpublic) stretch of the Nation River into a nonnavigable (and thus in-park, public) stretch of the same river.[4] So much for the Service's duty to maintain the "environmental integrity" of the Charley River basin "in its undeveloped natural condition," 16 U. S. C. § 410hh(10).

How can the Service adequately protect Alaska's rivers if it cannot regulate? What is more, how can it maintain nearby park areas, such as riverbanks or nonnavigable park waters downstream, if it has no power to check the

[4] The navigability of a river is determined "on a segment-by-segment basis." *PPL Montana, LLC* v. *Montana*, 565 U. S. 576, 593 (2012); see also *id.*, at 594.

contamination of navigable waters? To achieve Congress' stated goals in creating Alaska's parks, the Service must have some authority to protect navigable rivers within those parks.[5]

C

Thankfully, today's decision does not leave the Service without any authority over the Nation River and other rivers like it. Even though most navigable rivers in Alaska are not public parklands, Congress has left at least two avenues for the Service to achieve ANILCA's purposes. Neither is addressed by the Court's decision.

1

First, the Court expressly does not decide whether the Service may regulate navigable waters running through Alaska's parks as an adjunct to its authority over the parks themselves. See *ante*, at 48, n. 5.[6] In my view, the Service likely retains power over navigable rivers that run through Alaska's parks when that power is necessary to protect Alaska's parklands.

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[5] Even if the Service cannot regulate the rivers itself, the majority says that the agency can enter into "cooperative agreements" with Alaska to regulate the rivers, 16 U. S. C. § 3181(j), propose that state or other federal agencies take action to protect the rivers, § 3191(b)(7), or buy the submerged lands from Alaska and then regulate them, §§ 3103(c), 3192. See *ante*, at 57. But Congress made the Service directly responsible for protecting Alaska's parks and park resources. The Service cannot carry out its duty to "manag[e]" the park areas, § 410hh, if it is estopped from promulgating necessary rules and regulations.

[6] The Court's interpretation prohibits the Service only from applying its usual, in-park rules to out-of-park areas. See, *e. g.*, *ante*, at 46 (nonpublic lands "may not be regulated as part of the park"); *ante*, at 48 (Section 103(c)'s exclusion "exempt[s] non-public lands . . . from the Park Service's ordinary regulatory authority"); *ibid.* (the areas "are no longer subject to the Service's power over 'System units' and the 'water located within' them"); *ante*, at 51 (rejecting suggestion that inholdings can be "regulated as parklands"); *ante*, at 54 (the inholdings "are not subject to regulation as parkland").

The Service's default ability to regulate comes from the Organic Act. That Act gives the Service general authority to promulgate all regulations "necessary or proper" for managing park units, including power to regulate activities "on *or relating* to water located within [Park] System units." 54 U. S. C. §§ 100751(a), (b) (emphasis added). Nothing in the text of the Organic Act suggests that the Service is powerless over out-of-park areas in the midst of public parklands, like the Nation River.

This brings us back to Jane, this time canoeing down the Nation River with a gallon of toxic insecticide onboard. If Jane spills the insecticide into the river, the effects will surely reach the riverbanks—public areas within the park's legal boundaries. An antipollution rule tailored to apply to the Nation River as it runs through the park thus could well be "necessary or proper" to manage the parklands on either side of the river, even though the river itself is not legally a part of the park. § 100751(a). And if the pollution is likely to harm nonnavigable stretches of the river downstream—public waters that are "within" the park for legal purposes—the ban also could be authorized because it specifically concerns "activities . . . relating to water located within [Park] System units." § 100751(b). Similar reasoning could justify a range of Service regulations, giving the Service substantial authority over navigable rivers inside geographic park boundaries in order to protect the parklands through which they flow.

Assuming that the Service has such authority over out-of-park areas pursuant to its Organic Act, nothing in ANILCA § 103(c) takes it away. That section's first sentence explains that nonpublic lands are not part of Alaska's park units. See 16 U. S. C. § 3103(c); *supra*, at 62. The second sentence then emphasizes that the Service cannot regulate nonpublic lands as if they were part of the park. Together, these sentences mean that the Service loses its authority to apply normal park rules to nonpublic lands, and instead can apply only those rules that it can justify by reference to the needs of other, public lands. For instance, the Service is unlikely to have power to apply rules against abandoning property, 36 CFR § 2.22(a), or trespassing, § 2.31(a)(1), to nonpublic lands amid parklands because doing so would have little or no impact on neighboring public areas within the legal boundaries of the park. But a Service regulation tailored to apply to nonparklands in order to protect sensitive surrounding parklands—like a rule against putting a toxic substance in the Nation River to stop harms to the riverbanks—would present a different question. Such a regulation could be consistent with the Service's limited Organic Act authority over out-of-park areas, and it would not run afoul of ANILCA because it would not be applicable to public lands.

The Service's out-of-park authority is not at issue in this case given that the hovercraft regulation applies only within park boundaries, see *ante*, at 48, n. 5. Hovercraft can be unsightly, be loud, and disturb sensitive ecosystems within the park. See 48 Fed. Reg. 30258 (1983) ("The Service has determined that hovercraft should be prohibited because they provide virtually unlimited access to park areas and introduce a mechanical mode of transportation into locations where the intrusion of motorized equipment by sight or sound is generally inappropriate"). If the Service were to choose to apply its hovercraft ban to the Nation River, the agency could justify doing so in certain designated areas to protect a particular sensitivity in a surrounding (public) park area, including some habitats on the banks of the Nation River.

2

The Court also leaves open a second way for the Service to protect navigable rivers. Because the Nation River is not a designated Wild and Scenic River, the Court expressly does not decide the extent of the Service's power over such designated rivers. *Ante*, at 55–56, n. 10. If ANILCA § 103(c) is to be harmonized with the remainder of the statute, the Service must possess authority to regulate fully, as parklands, at least that subset of rivers.[7]

The Wild and Scenic Rivers Act, 16 U. S. C. § 1271 *et seq.*, established a system of rivers that "possess outstandingly remarkable scenic, recreational, geologic, fish and wildlife, historic, cultural, or other similar values." § 1271. Congress created the system to "preserv[e]" designated rivers "in free-flowing condition." *Ibid.* Rivers can become part of the system if they are designated by an Act of Congress. § 1273(a)(i).

ANILCA designated 26 Alaskan rivers as components of this system, more than doubling the mileage of the rivers in the system at the time. § 1274; S. Johnson & L. Comay, CRS Report for Congress, The National Wild and Scenic Rivers System: A Brief Overview 1 (2015); see § 1281(c). ANILCA, in turn, expressly defines the Alaskan park system as including "any unit in Alaska of the . . . National Wild and Scenic Rivers Systems." § 3102(4).

Although ANILCA § 103(c) generally has the effect of removing navigable waters from the legal boundaries of Alaska's parks, Congress' highly specific definition of the Wild and Scenic Rivers as a portion of Alaska's park system over-

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[7] This authority would supplement, not replace, the Service's authority over out-of-park navigable rivers, because the Service's authority over the Wild and Scenic Rivers alone cannot explain all of ANILCA's express references to protecting Alaskan rivers. For instance, ANILCA states Congress' expectation that the Service will manage the Kobuk River in Kobuk Valley National Park. See 16 U. S. C. § 410hh(6). That portion of the river is not designated as a Wild and Scenic River, see § 1274, but the Bureau of Land Management has found it to be navigable, see Dept. of Interior, Nat. Park Serv., Kobuk Valley National Park: General Management Plan 65 (1987). The Service therefore must have another source of authority over the river if the statute's purpose provision is not to be deprived of meaning.

rides ANILCA § 103(c)'s general carveout. "General language of a statutory provision . . . will not be held to apply to a matter specifically dealt with in another part of the same enactment." *D. Ginsberg & Sons, Inc.* v. *Popkin*, 285 U. S. 204, 208 (1932). To make sense of ANILCA § 103(c) within the context of the rest of ANILCA, the Service should retain full authority to regulate the Wild and Scenic Rivers as parklands.

* * *

One final note warrants mention. Although I join the Court's opinion, I recognize that today's decision creates uncertainty concerning the extent of Service authority over navigable waters in Alaska's parks. Courts ultimately may affirm some of the Service's authority over out-of-park areas and Wild and Scenic Rivers. But that authority may be more circumscribed than the special needs of the parks require. This would not only make it impossible for the Service to fulfill Congress' charge to preserve rivers, made plain in ANILCA itself, but also threaten the Service's ability to fulfill its broader duty to protect all of the parklands through which the rivers flow. See, *e. g.*, 16 U. S. C. § 410hh(6) (Kobuk Valley National Park "shall be managed . . . [t]o maintain the environmental integrity of the natural features of the Kobuk River Valley, including the Kobuk, Salmon, and other rivers"). Many of Alaska's navigable rivers course directly through the heart of protected parks, monuments, and preserves. A decision that leaves the Service with no authority, or only highly constrained authority, over those rivers would undercut Congress' clear expectations in enacting ANILCA and could have exceedingly damaging consequences.

In light of the explicit instructions throughout ANILCA that the Service must regulate and protect rivers in Alaska, I am convinced that Congress intended the Service to possess meaningful authority over those rivers. If I am correct, Congress can and should clarify the broad scope of the Service's authority over Alaska's navigable waters.

LORENZO *v.* SECURITIES AND EXCHANGE COMMISSION

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE DISTRICT OF COLUMBIA CIRCUIT

No. 17–1077. Argued December 3, 2018—Decided March 27, 2019

Securities and Exchange Commission Rule 10b–5 makes it unlawful to (a) "employ any device, scheme, or artifice to defraud," (b) "make any untrue statement of a material fact," or (c) "engage in any act, practice, or course of business" that "operates . . . as a fraud or deceit" in connection with the purchase or sale of securities. In *Janus Capital Group, Inc.* v. *First Derivative Traders*, 564 U. S. 135, this Court held that to be a "*maker*" of a statement under subsection (b) of that Rule, one must have "ultimate authority over the statement, including its content and whether and how to communicate it." *Id.*, at 142 (emphasis added). On the facts of *Janus*, this meant that an investment adviser who had merely "participat[ed] in the drafting of a false statement" "made" by another could not be held liable in a private action under subsection (b). *Id.*, at 145.

Petitioner Francis Lorenzo, while the director of investment banking at an SEC-registered brokerage firm, sent two e-mails to prospective investors. The content of those e-mails, which Lorenzo's boss supplied, described a potential investment in a company with "confirmed assets" of $10 million. In fact, Lorenzo knew that the company had recently disclosed that its total assets were worth less than $400,000.

In 2015, the Commission found that Lorenzo had violated Rule 10b–5, § 10(b) of the Exchange Act, and § 17(a)(1) of the Securities Act by sending false and misleading statements to investors with intent to defraud. On appeal, the District of Columbia Circuit held that Lorenzo could not be held liable as a "maker" under subsection (b) of the Rule in light of *Janus*, but sustained the Commission's finding with respect to subsections (a) and (c) of the Rule, as well as § 10(b) and § 17(a)(1).

Held: Dissemination of false or misleading statements with intent to defraud can fall within the scope of Rules 10b–5(a) and (c), as well as the relevant statutory provisions, even if the disseminator did not "make" the statements and consequently falls outside Rule 10b–5(b). Pp. 77–85.

(a) It would seem obvious that the words in these provisions are, as ordinarily used, sufficiently broad to include within their scope the dissemination of false or misleading information with the intent to defraud. By sending e-mails he understood to contain material untruths, Lorenzo "employ[ed]" a "device," "scheme," and "artifice to defraud" within the meaning of subsection (a) of the Rule, § 10(b), and § 17(a)(1). By the same conduct, he "engage[d] in a[n] act, practice, or course of business" that "operate[d] . . . as a fraud or deceit" under subsection (c) of the Rule. As Lorenzo does not challenge the appeals court's scienter finding, it is undisputed that he sent the e-mails with "intent to deceive, manipulate, or defraud" the recipients. *Aaron* v. *SEC*, 446 U. S. 680, 686, and n. 5. Resort to the expansive dictionary definitions of "device," "scheme," and "artifice" in Rule 10b–5(a) and § 17(a)(1), and of "act" and "practice" in Rule 10b–5(c), only strengthens this conclusion. Under the circumstances, it is difficult to see how Lorenzo's actions could escape the reach of these provisions. Pp. 78–79.

(b) Lorenzo counters that the only way to be liable for false statements is through those provisions of the securities laws—like Rule 10b–5(b)—that refer *specifically* to false statements. Holding to the contrary, he and the dissent say, would render subsection (b) "superfluous." The premise of this argument is that each subsection governs different, mutually exclusive, spheres of conduct. But this Court and the Commission have long recognized considerable overlap among the subsections of the Rule and related provisions of the securities laws. And the idea that each subsection governs a separate type of conduct is difficult to reconcile with the Rule's language, since at least some conduct that amounts to "employ[ing]" a "device, scheme, or artifice to defraud" under subsection (a) also amounts to "engag[ing] in a[n] act . . . which operates . . . as a fraud" under subsection (c). This Court's conviction is strengthened by the fact that the plainly fraudulent behavior confronted here might otherwise fall outside the Rule's scope. Using false representations to induce the purchase of securities would seem a paradigmatic example of securities fraud. Pp. 79–82.

(c) Lorenzo and the dissent make a few other important arguments. The dissent contends that applying Rules 10b–5(a) and (c) to conduct like Lorenzo's would render *Janus* "a dead letter." *Post*, at 94. But *Janus* concerned subsection (b), and it said nothing about the Rule's application to the dissemination of false or misleading information. Thus, *Janus* would remain relevant (and preclude liability) where an individual neither *makes* nor *disseminates* false information—provided, of course, that the individual is not involved in some other form of fraud. Lorenzo also claims that imposing primary liability upon his conduct would erase or at least weaken the distinction between primary and secondary liability under the statute's "aiding and abetting" provision. See 15 U. S. C. § 78t(e). But the line the Court adopts today is clear:

Those who disseminate false statements with intent to defraud are primarily liable under Rules 10b–5(a) and (c), § 10(b), and § 17(a)(1), even if they are secondarily liable under Rule 10b–5(b). As for Lorenzo's suggestion that those like him ought to be held secondarily liable, this offer will, too often, prove illusory. Where a "maker" of a false statement does not violate subsection (b) of the Rule (perhaps because he lacked the necessary intent), a disseminator of those statements, even one knowingly engaged in an egregious fraud, could not be held to have violated the "aiding and abetting" statute. And if, as Lorenzo claims, the disseminator has not primarily violated other parts of Rule 10b–5, then such a fraud, whatever its intent or consequences, might escape liability altogether. That anomalous result is not what Congress intended. Pp. 82–85.

872 F. 3d 578, affirmed.

Breyer, J., delivered the opinion of the Court, in which Roberts, C. J., and Ginsburg, Alito, Sotomayor, and Kagan, JJ., joined. Thomas, J., filed a dissenting opinion, in which Gorsuch, J., joined, *post*, p. 87. Kavanaugh, J., took no part in the consideration or decision of the case.

Robert G. Heim argued the cause for petitioner. With him on the briefs was *Howard S. Meyers.*

Christopher G. Michel argued the cause *pro hac vice* for respondent. With him on the brief were *Solicitor General Francisco*, *Deputy Solicitor General Stewart*, *Robert B. Stebbins*, *Michael A. Conley*, *Dominick V. Freda*, and *Martin V. Totaro.**

Justice Breyer delivered the opinion of the Court.

Securities and Exchange Commission Rule 10b–5 makes it unlawful:

> "(a) To employ any device, scheme, or artifice to defraud,

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*Briefs of *amici curiae* urging reversal were filed for the Securities Industry and Financial Markets Association et al. by *Daniel A. McLaughlin*, *Carter G. Phillips*, *Kwaku A. Akowuah*, and *Kevin Carroll*; and for Securities Law Professors by *Brian Calandra* and *Lyle Roberts*.

Michael B. Eisenkraft filed a brief for the North American Securities Administrators Association, Inc., as *amicus curiae* urging affirmance.

> "(b) To make any untrue statement of a material fact . . . , or
>
> "(c) To engage in any act, practice, or course of business which operates or would operate as a fraud or deceit . . .
>
> "in connection with the purchase or sale of any security." 17 CFR § 240.10b–5 (2018).

In *Janus Capital Group, Inc.* v. *First Derivative Traders*, 564 U. S. 135 (2011), we examined the second of these provisions, Rule 10b–5(b), which forbids the "mak[ing]" of "any untrue statement of a material fact." We held that the "*maker* of a statement is the person or entity with ultimate authority over the statement, including its content and whether and how to communicate it." *Id.*, at 142 (emphasis added). We said that "[w]ithout control, a person or entity can merely suggest what to say, not 'make' a statement in its own right." *Ibid.* And we illustrated our holding with an analogy: "[W]hen a speechwriter drafts a speech, the content is entirely within the control of the person who delivers it. And it is the speaker who takes credit—or blame—for what is ultimately said." *Id.*, at 143. On the facts of *Janus*, this meant that an investment adviser who had merely "participat[ed] in the drafting of a false statement" "made" by another could not be held liable in a private action under subsection (b) of Rule 10b–5. *Id.*, at 145.

In this case, we consider whether those who do not "make" statements (as *Janus* defined "make"), but who disseminate false or misleading statements to potential investors with the intent to defraud, can be found to have violated the *other* parts of Rule 10b–5, subsections (a) and (c), as well as related provisions of the securities laws, § 10(b) of the Securities Exchange Act of 1934, 48 Stat. 891, as amended, 15 U. S. C. § 78j(b), and § 17(a)(1) of the Securities Act of 1933, 48 Stat. 84–85, as amended, 15 U. S. C. § 77q(a)(1). We believe that they can.

I

A

For our purposes, the relevant facts are not in dispute. Francis Lorenzo, the petitioner, was the director of investment banking at Charles Vista, LLC, a registered broker-dealer in Staten Island, New York. Lorenzo's only investment banking client at the time was Waste2Energy Holdings, Inc., a company developing technology to convert "solid waste" into "clean renewable energy."

In a June 2009 public filing, Waste2Energy stated that its total assets were worth about $14 million. This figure included intangible assets, namely, intellectual property, valued at more than $10 million. Lorenzo was skeptical of this valuation, later testifying that the intangibles were a "dead asset" because the technology "didn't really work."

During the summer and early fall of 2009, Waste2Energy hired Lorenzo's firm, Charles Vista, to sell to investors $15 million worth of debentures, a form of "debt secured only by the debtor's earning power, not by a lien on any specific asset," Black's Law Dictionary 486 (10th ed. 2014).

In early October 2009, Waste2Energy publicly disclosed, and Lorenzo was told, that its intellectual property was worthless, that it had " ' "[w]rit[ten] off . . . all [of its] intangible assets," ' " and that its total assets (as of March 31, 2009) amounted to $370,552.

Shortly thereafter, on October 14, 2009, Lorenzo sent two e-mails to prospective investors describing the debenture offering. According to later testimony by Lorenzo, he sent the e-mails at the direction of his boss, who supplied the content and "approved" the messages. The e-mails described the investment in Waste2Energy as having "3 layers of protection," including $10 million in "confirmed assets." The e-mails nowhere revealed the fact that Waste2Energy had publicly stated that its assets were in fact worth less than $400,000. Lorenzo signed the e-mails with his own name, he identified himself as "Vice President—Investment Banking," and he invited the recipients to "call with any questions."

B

In 2013, the Securities and Exchange Commission instituted proceedings against Lorenzo (along with his boss and Charles Vista). The Commission charged that Lorenzo had violated Rule 10b–5, § 10(b) of the Exchange Act, and § 17(a)(1) of the Securities Act. Ultimately, the Commission found that Lorenzo had run afoul of these provisions by sending false and misleading statements to investors with intent to defraud. As a sanction, it fined Lorenzo $15,000, ordered him to cease and desist from violating the securities laws, and barred him from working in the securities industry for life.

Lorenzo appealed, arguing primarily that in sending the e-mails he lacked the intent required to establish a violation of Rule 10b–5, § 10(b), and § 17(a)(1), which we have characterized as " 'a mental state embracing intent to deceive, manipulate, or defraud.' " *Aaron* v. *SEC*, 446 U. S. 680, 686, and n. 5 (1980). With one judge dissenting, the Court of Appeals panel rejected Lorenzo's lack-of-intent argument. 872 F. 3d 578, 583 (CADC 2017). Lorenzo does not challenge the panel's scienter finding. Reply Brief 17.

Lorenzo also argued that, in light of *Janus*, he could not be held liable under subsection (b) of Rule 10b–5. 872 F. 3d, at 586–587. The panel agreed. Because his boss "asked Lorenzo to send the emails, supplied the central content, and approved the messages for distribution," *id.*, at 588, it was the boss that had "ultimate authority" over the content of the statement "and whether and how to communicate it," *Janus*, 563 U. S., at 142. (We took this case on the assumption that Lorenzo was not a "maker" under subsection (b) of Rule 10b–5, and do not revisit the court's decision on this point.)

The Court of Appeals nonetheless sustained (with one judge dissenting) the Commission's finding that, by knowingly disseminating false information to prospective investors, Lorenzo had violated other parts of Rule 10b–5, subsections (a) and (c), as well as § 10(b) and § 17(a)(1).

Lorenzo then filed a petition for certiorari in this Court. We granted review to resolve disagreement about whether someone who is not a "maker" of a misstatement under *Janus* can nevertheless be found to have violated the other subsections of Rule 10b–5 and related provisions of the securities laws, when the only conduct involved concerns a misstatement. Compare, *e. g.*, 872 F. 3d 578, with *WPP Luxembourg Gamma Three Sarl* v. *Spot Runner, Inc.*, 655 F. 3d 1039, 1057–1058 (CA9 2011).

II

A

At the outset, we review the relevant provisions of Rule 10b–5 and of the statutes. See Appendix, *infra*. As we have said, subsection (a) of the Rule makes it unlawful to "employ any device, scheme, or artifice to defraud." Subsection (b) makes it unlawful to "make any untrue statement of a material fact." And subsection (c) makes it unlawful to "engage in any act, practice, or course of business" that "operates . . . as a fraud or deceit." See 17 CFR § 240.10b–5.

There are also two statutes at issue. Section 10(b) makes it unlawful to "use or employ . . . any manipulative or deceptive device or contrivance" in contravention of Commission rules and regulations. 15 U. S. C. § 78j(b). By its authority under that section, the Commission promulgated Rule 10b–5. The second statutory provision is § 17(a), which, like Rule 10b–5, is organized into three subsections. 15 U. S. C. § 77q(a). Here, however, we consider only the first subsection, § 17(a)(1), for this is the only subsection that the Commission charged Lorenzo with violating. Like Rule 10b–5(a), subsection (a)(1) makes it unlawful to "employ any device, scheme, or artifice to defraud."

B

After examining the relevant language, precedent, and purpose, we conclude that (assuming other here-irrelevant legal requirements are met) dissemination of false or misleading statements with intent to defraud can fall within the scope of subsections (a) and (c) of Rule 10b–5, as well as the relevant statutory provisions. In our view, that is so even if the disseminator did not "make" the statements and consequently falls outside subsection (b) of the Rule.

It would seem obvious that the words in these provisions are, as ordinarily used, sufficiently broad to include within their scope the dissemination of false or misleading information with the intent to defraud. By sending e-mails he understood to contain material untruths, Lorenzo "employ[ed]" a "device," "scheme," and "artifice to defraud" within the meaning of subsection (a) of the Rule, § 10(b), and § 17(a)(1). By the same conduct, he "engage[d] in a[n] act, practice, or course of business" that "operate[d] . . . as a fraud or deceit" under subsection (c) of the Rule. Recall that Lorenzo does not challenge the appeals court's scienter finding, so we take for granted that he sent the e-mails with " 'intent to deceive, manipulate, or defraud' " the recipients. *Aaron*, 446 U. S., at 686, n. 5. Under the circumstances, it is difficult to see how his actions could escape the reach of those provisions.

Resort to dictionary definitions only strengthens this conclusion. A " 'device,' " we have observed, is simply " '[t]hat which is devised, or formed by design' "; a " 'scheme' " is a " 'project,' " " 'plan[,] or program of something to be done' "; and an " 'artifice' " is " 'an artful stratagem or trick.' " *Id.*, at 696, n. 13 (quoting Webster's New International Dictionary 713, 2234, 157 (2d ed. 1934) (Webster's Second)). By these lights, dissemination of false or misleading material is easily an "artful stratagem" or a "plan," "devised" to defraud an investor under subsection (a). See Rule 10b–5(a) (making it unlawful to "employ any device, scheme, or artifice to defraud"); § 17(a)(1) (same). The words "act" and "practice" in subsection (c) are similarly expansive. Webster's Second 25 (defining "act" as "a doing" or a "thing done"); *id.*, at 1937 (defining "practice" as an "action" or "deed"); see Rule 10b–5(c) (making it unlawful to "engage in a[n] act, practice, or course of business" that "operates . . . as a fraud or deceit").

These provisions capture a wide range of conduct. Applying them may present difficult problems of scope in borderline cases. Purpose, precedent, and circumstance could lead to narrowing their reach in other contexts. But we see nothing borderline about this case, where the relevant conduct (as found by the Commission) consists of disseminating false or misleading information to prospective investors with the intent to defraud. And while one can readily imagine other actors tangentially involved in dissemination—say, a mailroom clerk—for whom liability would typically be inappropriate, the petitioner in this case sent false statements directly to investors, invited them to follow up with questions, and did so in his capacity as vice president of an investment banking company.

C

Lorenzo argues that, despite the natural meaning of these provisions, they should not reach his conduct. This is so, he says, because the only way to be liable for false statements is through those provisions that refer *specifically* to false statements. Other provisions, he says, concern "scheme liability claims" and are violated only when conduct other than misstatements is involved. Brief for Petitioner 4–6, 28–30. Thus, only those who "make" untrue statements under subsection (b) can violate Rule 10b–5 in connection with statements. (Similarly, § 17(a)(2) would be the sole route for finding liability for statements under § 17(a).) Holding to the contrary, he and the dissent insist, would render subsection (b) of Rule 10b–5 "superfluous." See *post*, at 92, 93 (opinion of THOMAS, J.).